

equivalent to the Greek ἀδίκημα ; and sometimes iniquity and injustice, which the Greeks express by ἀδικία ; thus a litigant is said to have received an 'injury' when the praetor or judge  
1 delivers an unjust judgment against him. An injury or outrage is inflicted not only by striking with the fist, a stick, or a whip, but also by vituperation for the purpose of collecting a crowd, or by taking possession of a man's effects on the ground that he was in one's debt ; or by writing, composing, or publishing defamatory prose or verse, or contriving the doing of any of these things by some one else ; or by constantly following a matron, or a young boy or girl below the age of puberty, or attempting anybody's chastity ; and, in a  
2 word, by innumerable other acts. An outrage or injury may be suffered either in one's own person, or in the person of a child in one's power, or even, as now is generally allowed, in that of one's wife. Accordingly, if you commit an 'outrage' on a woman who is married to Titius, you can be sued not only in her own name, but also in those of her father, if she be in his power, and of her husband. But if, conversely, it be the husband who is outraged, the wife cannot sue ; for wives should be protected by their husbands, not husbands by their wives. Finally, a father-in-law may sue on an outrage committed on his daughter-in-law, if the son to whom she is married is in  
3 his power. Slaves cannot be outraged themselves, but their master may be outraged in their person, though not by all the acts by which an outrage might be offered to him in the person of a child or wife, but only by aggravated assaults or such insulting acts as clearly tend to dishonour the master himself : for instance, by flogging the slave, for which an action lies ; but for mere verbal abuse of a slave, or for  
4 striking him with the fist, the master cannot sue. If an outrage is committed on a slave owned by two or more persons jointly, the damages to be paid to these severally should be assessed with reference not to the shares in which they own him, but to their rank or position, as it is to the reputation  
5 and not to property that the injury is done ; and if an outrage is committed on a slave belonging to Maevius, but in whom Titius has a usufruct, the injury is deemed to be done to the  
6 former rather than to the latter. But if the person outraged is